

Brackenridge Civil Group Inc

www.brackenridgecivil.com

April 17, 2006

Mark Green
Chief Financial Officer
Franklin-Snyder

Re: Utility Relocation Design for Franklin-Snyder

Dear Mr. Green:

This letter sets out the terms on which Brackenridge Civil Group Inc will provide engineering design services to Franklin-Snyder in connection with the relocation of utilities within the Franklin-Snyder corridor. It follows our meeting in this office and the correspondence since, and it is intended to serve as the agreement between us. If it states our understanding correctly, please sign and return the enclosed copy at your convenience. We will not commence work until we have the executed copy in hand.

Scope of Services

We will prepare relocation design for the water, sanitary sewer, and dry utility facilities that conflict with the improvements as they are presently shown. The work is divided into three parts. First, we will assemble existing conditions: record drawings from the owners of the affected facilities, the survey furnished to us, and a field review by our staff to confirm what is actually in the ground against what the records show. Second, we will prepare relocation layouts and profiles, including plan and profile sheets, connection details, and the erosion and sediment control measures the relocations require. Third, we will prepare the drawings, technical specifications, and quantity estimate suitable for permit submittal and for bidding.

Our services do not include construction staking, geotechnical investigation, subsurface utility engineering by vacuum excavation, environmental permitting beyond the erosion and sediment control plan, easement plats, or services during construction. Any of these can be added by written amendment, and we will quote them separately if you want them.

Approach

We work from record information first and confirm it in the field before we draw. In our experience the conflicts that cost money on a relocation are the ones nobody knew about at design, and the cheapest hour on a project like this one is the hour spent walking the corridor with the record

drawings in hand. Where the records and the field disagree we will tell you which we have relied on and why.

We will coordinate directly with each facility owner as their requirements govern the relocation of their own plant. We will keep you informed of that correspondence, and we will bring anything to you that carries a cost or schedule consequence rather than resolving it on our own. Drawings will be issued to you at the milestones described above for your review, and we will meet with your staff at each issue if you wish.

Project Team

I will serve as Principal Engineer and will seal the drawings. Linda George, Project Engineer, will have day to day charge of the design and will be your working contact; she has run the stormwater and utility design on the great majority of the corridor work this office has produced, and she is the person to call when you have a question about the drawings. Jason Jordan, Design Technician, will prepare the plan set and maintain our drawing standards. The three of us will do the work; we do not subcontract design and we do not assign staff you have not been told about.

Fee

For the scope described above we propose a fixed fee of \$72,000, inclusive of our ordinary reimbursable expenses for printing, plotting, delivery, and mileage. We are prepared to begin on April 27, 2006 and to carry the work through to the permit and bid submittal in approximately three months from that date, subject to the timeliness of the record information we receive from the facility owners and of your reviews.

Fees and Payment

We will invoice monthly for the portion of the work completed in the preceding month. Invoices are due thirty days from the date of invoice. Amounts not paid within sixty days will bear interest at one percent per month. Additional services requested in writing and not included in the scope above will be invoiced at our standard hourly rates then in effect, and we will provide an estimate before beginning any such work.

Term and Termination

This agreement remains in effect until the services described above are complete or until it is terminated. Either party may terminate on seven days written notice, with or without cause. Upon termination we will be paid for services performed and expenses incurred through the effective date of termination, and we will deliver to you the work then in progress in the condition it stands.

Confidentiality

We will hold in confidence the information you furnish to us that is marked or identified as confidential, and we will not disclose it except to our own staff, to the facility owners and reviewing agencies to the extent required to perform the work, or as required by law. This obligation does not extend to information already in the public record, information already known to us, or information disclosed to us by a third party without restriction.

Limitation of Liability

Our services will be performed with the care and skill ordinarily exercised by members of our profession practicing under similar conditions in this locality. No other warranty, express or implied, is made. To the fullest extent permitted by law, our aggregate liability to you arising out of this agreement, whether in contract, tort, or otherwise, is limited to the amount of the fee stated above, and neither party is liable to the other for indirect, incidental, or consequential damages, including loss of use or loss of profit.

Governing Law

This agreement is governed by the laws of the state in which the project is located. Any claim arising under it will be brought in the courts of the county in which the project is located. This letter, with any written amendments signed by both of us, is the entire agreement between us and supersedes our prior discussions and correspondence on the subject.

If the foregoing is acceptable, please sign both copies where indicated, retain one for your file, and return the other to this office. Should any part of it require adjustment before you can sign, call me and we will take it up directly. We appreciate the confidence Franklin-Snyder has placed in this firm and we will do the work carefully.

Very truly yours,

Mark Todd

Principal Engineer

Date: April 17, 2006

Mark Green

Chief Financial Officer, Franklin-Snyder

Date: April 17, 2006